

Court No. - 37

Case :- WRIT - C No. - 33308 of 2012

Petitioner :- M/S Birla Aircon

Respondent :- District Magistrate, Meerut And Others

Petitioner Counsel :- Chetan Chatterjee

Respondent Counsel :- C.S.C., Nipendra Mishra

Hon'ble Ashok Bhushan, J.

Hon'ble Abhinava Upadhyay, J.

Sri Nipendra Mishra appears for respondent nos. 5 and 6. Learned Standing Counsel appears for respondent nos. 1, 2 and 3.

Respondents are allowed a week's time to obtain instructions.

Put up on 24th July, 2012 as fresh.

Order Date :- 16.7.2012

N.S.Rathour

Court No. - 37

Case :- WRIT - C No. - 33308 of 2012

Petitioner :- M/S Birla Aircon

Respondent :- District Magistrate, Meerut And Others

Petitioner Counsel :- Chetan Chaterjee

Respondent Counsel :- C.S.C.,Nipendra Mishra

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

Learned Standing Counsel prays for and is allowed three days time to file counter affidavit. Counter affidavit on behalf of respondent nos. 5 and 6 file today is taken on record.

Put up on Tuesday i.e. 31.7.2012 as fresh.

Rejoinder affidavit may be also filed by the date fixed.

Order Date :- 25.7.2012

Priyanka

Court No. - 37

Case :- WRIT - C No. - 33308 of 2012

Petitioner :- M/S Birla Aircon

Respondent :- District Magistrate, Meerut And Others

Petitioner Counsel :- Chetan Chaterjee

Respondent Counsel :- C.S.C.,Nipendra Mishra

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

As prayed, put up on Friday i.e. 3.8.2012 as fresh.

Order Date :- 31.7.2012

Priyanka

Court No. - 37

Case :- WRIT - C No. - 33308 of 2012

Petitioner :- M/S Birla Aircon

Respondent :- District Magistrate, Meerut And Others

Petitioner Counsel :- Chetan Chaterjee

Respondent Counsel :- C.S.C., Nipendra Mishra

Hon'ble Ashok Bhushan, J.

Hon'ble Abhinava Upadhyay, J.

As prayed, put up Tuesday i.e., on 14.08.2012 as fresh.

Order Date :- 8.8.2012

PKB

Court No. - 37

Case :- WRIT - C No. - 33308 of 2012

Petitioner :- M/S Birla Aircon

Respondent :- District Magistrate, Meerut And Others

Petitioner Counsel :- Chetan Chatterjee

Respondent Counsel :- C.S.C., Nipendra Mishra

Hon'ble Ashok Bhushan, J.

Hon'ble Mrs. Sunita Agarwal, J.

Heard Shri Chetan Chatterjee and Shri Mayank Agrawal, learned counsel for the petitioner and Ms. Archana Srivastava, learned standing counsel appearing for respondents no. 1 to 4.

Put up for orders on 23.8.2012.

Order Date :- 14.8.2012

Atul kr. sri.

In Chambers

Case :- WRIT - C No. - 33308 of 2012

Petitioner :- M/S Birla Aircon

Respondent :- District Magistrate, Meerut And Others

Petitioner Counsel :- Chetan Chatterjee

Respondent Counsel :- C.S.C., Nipendra Mishra

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Hon'ble Ashok Bhushan, J.

Hon'ble Mrs. Sunita Agarwal, J.

(Per Hon'ble Ashok Bhushan, J.)

Heard Sri Chetan Chatterjee and Sri Mayank Agrawal for the petitioner, Sri Nipendra Mishra appearing for respondents No.5 and 6 and Smt. Archana Srivastava, learned Standing Counsel appearing for respondents No.1, 2 and 3.

Counter and rejoinder affidavits have been exchanged between the parties and with the consent of learned counsel for the parties, the writ petition is being finally decided.

By this writ petition, the petitioner, a partnership concern, has prayed for a writ of mandamus commanding the respondents No.1, 2 and 3 to remove the seal at the factory premises of the petitioner (149, Opposite Old Delhi Chungi, Delhi Road, Meerut) and further to compensate the petitioner.

Brief facts of the case, which emerge from the pleadings of the parties, are; the petitioner is a partnership firm registered under the Indian Partnership Act and engaged in manufacturing and export of Water Cooler, Water Cooler Kit, Refrigerating material, Room Cooler and Sheet Metal Parts. The petitioner did not take any

electricity supply from respondents No.5 and 6 and claimed to have installed two generators. M/s Beeco Electricals India is also carrying out manufacturing business at 280, Delhi Road, Meerut City. M/s Beeco Electricals India was found to be engaged in unauthorised use of electricity in the year 2007 consequent to which assessment was made against M/s Beeco Electrical India for an amount of Rs.26,54,671/-. The recovery certificate dated 25th May, 2011 was sent by the Executive Engineer against M/s Beeco Electricals India for the aforesaid amount to be recovered as arrears of land revenue. M/s Beeco Electricals India challenged the aforesaid assessment unsuccessfully before this Court as well as before the Apex Court. The Executive Engineer on 17th May, 2012 wrote to the Collector, Meerut that recovery be proceeded against M/s Beeco Electricals India for an amount of Rs.26,54,671/- in view of the finalisation of the assessment against M/s Beeco Electricals India after the order of the Apex Court passed in Special Leave to Appeal (Civil) No.14883 of 2008, dated 10th October, 2011. On 26th June, 2012 the revenue officials sealed the premises of M/s Beeco Electricals India including the premises of the petitioner which is located just behind the premises of M/s Beeco Electricals India. The petitioners claims to be a separate entity having its registration with Directorate of Industries, Government of U.P. through registration certificate dated 25th August, 1994. In the registration certificate the factory premises is mentioned to be located at 149, Purani Delhi Chungi, Delhi Road, Meerut. The petitioner claims to have submitted a representation dated 3rd July, 2012 to the Collector, Meerut and dated 6th July, 2012 to the Tahsildar and the Executive Engineer praying that seal put by revenue officials be removed so that petitioner's industry may start. The petitioner thereafter filed the present writ petition in this Court on 12th July, 2012 praying for following relief:-

"a. issue a writ, order or direction in the nature of mandamus commanding the respondents No.1 to 3 to forthwith remove the seals at the factory premises of petitioner including the generators.

b. issue a writ, order or direction in the nature of mandamus commanding the respondents to restitute/compensate the petitioner for the loss, damage, harm, mental agony and trauma to the reputation of the petitioner including the financial loss which has been suffered by it due to illegal act of the respondents in sealing the factory premises of the petitioner."

A counter affidavit has been filed on behalf of respondents No.5 and 6 and also on behalf of respondents No.1, 2 and 3. The respondents No.5 and 6 in its counter affidavit have submitted that electricity supply was given to M/s Beeco Electricals India by order dated 26th May, 2004 at the premises 149 (New No.280), Delhi Road, District Meerut. A checking was conducted on 10th December, 2007 on the basis of which a theft assessment of Rs.26,54,671/- was made and for recovery of which amount as arrears of land revenue, recovery certificate was sent to the Collector and the revenue authorities have initiated the process. It has been pleaded that the electric connection was in Premises No.149 (New No.280) situate at Delhi Road, Meerut. It has also been stated that no electric supply was ever given to M/s Birla Aircon. The State in its counter affidavit has stated that Municipal No.149 and 280 belong

to one and same premises. Municipal No.149 is old number while Municipal No.280 is new number where M/s Birla Aircon is existing. It is stated that M/s Beeco Electricals India having not paid electricity dues, the recovery proceedings had been initiated. The premises of M/s Beeco Electricals India were sealed by revenue authorities. It has further been stated that Mr. P.K. Jain son of Sri T.C. Jain is partner of M/s Beeco Electricals India and also of M/s Birla Aircon. The recovery proceedings had been initiated against M/s Beeco Electricals India which having not paid the amount, its premises has been sealed. It has also been stated that sealed electric meter existed inside the sealed premises of M/s Beeco Electricals India.

The petitioner has filed rejoinder affidavit to the counter affidavit filed by respondents No.5 and 6 as well as to the counter affidavit filed by respondents No.1, 2 and 3 in which it is pleaded that partners of both M/s Beeco Electricals India and M/s Birla Aircon are different. The registration certificate of M/s Beeco Electricals dated 15th June, 1989 issued by the Directorate of Industries has been brought on record along with the rejoinder affidavit. It has been stated in the rejoinder affidavit that the property for M/s Birla Aircon was purchased by Jayant Jain who is one of the partners of M/s Birla Aircon. It has further been pleaded that petitioner's firm also uses the property of Waheed Ashraf on a rent of Rs.500/- per month. Copy of the lease-deed has been brought on record along with the rejoinder affidavit. It has been pleaded that M/s Beeco Electricals India is a distinct and separate entity having a different and independent premises which is owned by Jayant Jain and the said premises has been leased out to M/s Beeco Electricals India on a rent of Rs.1500/- per month. It is further pleaded that address of M/s Beeco Electricals India was

changed from 149, Delhi Road to 280 Delhi Road.

We have heard learned counsel for the parties and have perused the record.

From the submissions of learned counsel for the parties and pleadings on record, there is no dispute between the parties with regard to following facts:-

- (i) the electricity dues are against M/s Beeco Electricals India for recovery of which proceedings had been initiated by the revenue authorities and premises were sealed on 26th June, 2012.
- (ii) The recovery proceedings are not against M/s Birla Aircon (the petitioner) since it has no electricity supply.
- (iii) There is no challenge to recovery proceedings initiated against M/s Beeco Electricals India in the writ petition except challenge to action of the respondents in sealing the premises in which petitioner claims to carry on its business.

From the materials brought on the record, it is clear that M/s Beeco Electrcals India is a partnership firm which is running since before 1989 and it got itself registered with the District Industries Centre, Meerut through registration certificate dated 17th June, 1989. M/s Beeco Electricals had applied for supply of energy and the Executive Engineer by order dated 26th May, 2004 had sanctioned the supply on the basis of an agreement entered on 26th May, 2004 itself. It is relevant to note the subject of letter dated 26th May, 2004, which is as under:-

"Subject:- Giving supply to Shri M/s Beeco Electrical India C/o Sri Praveen Kumar Jain, Mohalla 149, Delhi Road, New No.280, Distt. Meerut. S.C. No.0962480920 Date of Agreement 26.5.04, Load 25 BHP, Scheme U.N.S./A.R.D.C./S.P.A./U.D.S."

The Registration of M/s Beeco Electricals India was with the address 149, Delhi Road, Meerut which address was got changed in the registration certificate with effect from 5th November, 1997 as 280, Delhi Road, Meerut. There is an endorsement of General Manager dated 6.9.1999 in the registration certificate to the aforesaid effect as is apparent from Annexure RA-7 to the rejoinder affidavit which indicates that above partnership firm started with effect from 7th November, 1997. M/s Birla Aircon has also got it registered with Directorate of Industries through registration certificate dated 19th March, 1998 which is filed at Page 27 of the writ petition wherein the address is mentioned as 149, Opposite Old Chungi, Delhi Road, Meerut. From the materials brought on the record, it is clear that the address of M/s Birla Aircon given in its registration certificate was 149, Delhi Road, Meerut which is the same address which was given by M/s Beeco Electricals India in its registration certificate dated 17th June, 1989 with District Industries Centre, Meerut. The Municipal No. 149 was subsequently changed as 280 endorsement to this effect is mentioned in the registration certificate of M/s Beeco Electricals India. The most relevant document on the record is the sanction letter by which M/s Beeco Electricals India was granted sanction of energy by letter dated 26th May, 2004 in which subject both the numbers i.e. 149 (old) and 280 (new) have been mentioned. It is thus clear that Municipal

Nos.149 and 280 are the address of same premises, 149 is old number and 280 is new number. Thus the submission of learned counsel for the petitioner that municipal number of both the premises is different is misconceived. However, M/s Birla Aircon being in existence prior to supply of electricity by the respondents to M/s Beeco Electricals India i.e. prior to 26th May, 2004, it is to be presumed that both the firms were carrying out their business in the same Municipal No. 149 (old) 280 (new).

The challenge in the writ petition is to the sealing of premises by revenue officials in pursuance of the recovery certificate issued against M/s Beeco Electricals India. The question to be considered is as to whether sealing of the premises is of M/s Beeco Electricals India alone or it also includes the sealing of premises of M/s Birla Aircon. Before we proceed to further examine the issue, it is relevant to note relevant statutory provisions in connection with the supply of energy to a premises.

The Electricity Act, 2003, Section 2(15), defines "consumer" and Section 2(50) defines "premises". Section 2(15) and 2(51) are quoted below:-

"2(15) "Consumer" means any person who is supplied with electricity for his own use by a licensee or the Government or by any other person engaged in the business of supplying electricity to the public under this Act or any other law for the time being in force and includes any person whose premises are for the time being connected for the purpose of receiving electricity with the works of a licensee, the

Government or such other person, as the case may be.

2(51) "Premises" *includes any land, building or structure."*

The U.P. Electricity Supply Code, 2002 had been framed which also defined "consumer" and "Premises" in Paragraphs 2.2(l) and 2.2 (an), which are as under:-

"2.2(l) 'Consumer' *means and includes any person who or whose installation is supplied with electricity or who has executed an agreement with the Licensee for the supply of electricity or any person whose installation is for the time being connected for the purpose of receiving the electricity or whose installation has been temporarily disconnected.*

2.2(an) 'Premises' *means the area/portion of the building/shed/field etc., for which the electric connection has been applied for or sanctioned for a single consumer."*

Subsequent to the U.P. Electricity Supply Code, 2002, the U.P. Electricity Supply Code, 2005 has been framed in which "consumer" has been defined in Paragraph 2.2(p) and "premises" has been defined in Paragraph 2.2(ss), which are as follows:-

"2.2(p). "Consumer" *means any person who is supplied with electricity for his own use by*

a Licensee, and includes a person whose supply has been disconnected for the time being; or the Government or by any other person engaged in the business of supplying electricity to the public under this Act or any other law for the time being in force and includes any person whose premises are for the time being connected for the purpose of receiving electricity with the works of a Licensee, the Government or such other person, as the case may be.

2.2(ss) "Premises" means the area/portion of the building/ shed/field etc. for which, the electric connection has been applied for or sanctioned for a single consumer."

The definition of "premises" as given in U.P. Electricity Supply Code, 2002 as well as in U.P. Electricity Supply Code, 2005 are same which means the area/portion of the building/shed/field etc. for which electric connection has been applied for or sanctioned. Whether the electric connection applied by M/s Beeco Electricals India was for entire premises [Municipal No.149 (old)/Municipal No.280 (new)] or was for portion of the building is a relevant factor to determine as to whether the entire premises or portion of premises could be sealed. At the time when electric supply was sanctioned to M/s Beeco Electricals India i.e. on 26th May, 2004 what was the premises in the occupation of M/s Beeco Electricals India and whether any part of premises was in occupation of M/s Birla Aircon are also relevant factors to be considered. There are no details as to status of M/s Beeco Electricals India and M/s Birla Aircon qua the premises nor details regarding ownership of

respective firms or their occupation are on the record except a map filed by the petitioner showing the respective premises. For determining the question as to what are the respective premises more materials and evidence are required and there being no sufficient materials on the record, this Court is not in a position to determine the issue moreso when petitioner has not brought on the record relevant details regarding ownership/occupation of respective firms.

From the discussions as made above, it is clear that recovery as arrears of land revenue can be proceeded with against premises owned by M/s Beeco Electricals only after determining as to whether at the time when the electric supply was granted i.e. on 26th May, 2004 the premises of M/s Beeco Electricals was only a part of premises or it occupied the entire premises. The recovery proceeding, which has been undertaken in accordance with the U.P. Zamindari Abolition and Land Reforms Act, 1950 and the Rules framed thereunder by the Collector and the sealing of their premises having also been effected by the revenue officials, we are of the view that petitioner be given a liberty to submit a detail objection before the Collector against sealing of alleged premises of M/s Birla Aircon along with relevant materials which objection be considered by the Collector or any other officials exercising the power of Collector.

In result, the writ petition is disposed of giving liberty to the petitioner to submit a detail objection before the Collector along with relevant materials which shall be considered and decided within a period of three weeks from the date of filing objection along with a certified copy of this order. It shall be open for the Collector or any other official authorised as Collector to obtain

necessary reports including the spot inspection before deciding the objection. It shall be open for the petitioner to raise all objections and submit materials before the Collector. While deciding the objection, the respondent No.5 may also be given an opportunity.

The writ petition is disposed of accordingly. Parties shall bear their own costs.

Order Date :- 23.8.2012
Rakesh